

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MIRIAM ORJI,

Plaintiff,

-against-

THE CITY OF NEW YORK,
THE CITY OF NEW YORK POLICE DEPARTMENT,
LEON BATSON, KEVINDALE A. NURSE, LLOYD
OXLEY and YVETTE WILLIAMS,

Defendants.
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Index No.: **501845/2015**

Date Purchased: **2/18/2015**

**SUPPLEMENTAL
VERIFIED COMPLAINT**

Plaintiff, by her attorneys, **LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. At all times herein mentioned, Plaintiff **MIRIAM ORJI** was, and still is, a resident of
the County of Rockland, State of New York.

2. At all times herein mentioned, Defendant **CITY OF NEW YORK** was and still is a
municipal corporation.

3. At all times herein mentioned, Defendant **CITY OF NEW YORK POLICE
DEPARTMENT** was and still is a municipal corporation.

4. At all times herein mentioned, Defendant **LEON BATSON** was, and still is, a
resident of the County of Queens, State of New York.

5. That on October 21, 2014, and within the time prescribed by law, a sworn Notice of
Claim stating, among other things, the time when and the place where the injuries and damages were
sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiffs'
behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for **THE**

CITY OF NEW YORK refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

6. That on January 30, 2015, pursuant to General Municipal Law Section 50(h), a hearing was held at the Office of the Comptroller or at the office of a designated agent.

7. At all times herein mentioned, Defendant **KEVIN DALE A. NURSE** was, and is, a resident of the County of Queens, State of New York.

8. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the owner of a motor vehicle bearing New York State registration number 547611.

9. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the titled owner of a motor vehicle bearing New York State registration number 547611.

10. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the registered owner of a motor vehicle bearing New York State registration number 547611.

11. At all times herein mentioned, Defendant **LEON BATSON** operated the aforementioned motor vehicle bearing New York State registration number 547611.

12. At all times herein mentioned, Defendant **LEON BATSON** operated the motor vehicle with the permission of Defendant, **THE CITY OF NEW YORK**.

13. At all times herein mentioned, Defendant **LEON BATSON** operated the aforementioned motor vehicle with the knowledge of the Defendant **THE CITY OF NEW YORK**.

14. At all times herein mentioned, Defendant **LEON BATSON** operated the aforementioned motor vehicle with the consent of the Defendant **THE CITY OF NEW YORK**.

15. At all times herein mentioned, Defendant **LEON BATSON** operated the aforementioned motor vehicle within the scope of his employment with the Defendant **THE CITY OF NEW YORK**.

16. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** managed the aforementioned said motor vehicle.

17. At all times herein mentioned, Defendant **LEON BATSON** managed the aforementioned motor vehicle.

18. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** maintained the aforementioned motor vehicle.

19. At all times herein mentioned, Defendant **LEON BATSON** maintained the aforementioned motor vehicle.

20. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** controlled the aforementioned said motor vehicle.

21. At all times herein mentioned, Defendant **LEON BATSON** controlled the aforementioned motor vehicle.

22. At all times herein mentioned, Defendant **KEVINDALE A. NURSE** was the owner of a 2002 motor vehicle bearing New York State registration number GLS8517.

23. At all times herein mentioned, Defendant **KEVINDALE A. NURSE** was the titled owner of a 2002 motor vehicle bearing New York State registration number GLS8517.

24. At all times herein mentioned, Defendant **KEVINDALE A. NURSE** was the registered owner of a 2002 motor vehicle bearing New York State registration number GLS8517.

25. At all times herein mentioned, Defendant **KEVINDALE A. NURSE** operated the aforementioned motor vehicle bearing New York State registration number GLS8517.

26. At all times herein mentioned, Defendant **KEVINDALE A. NURSE** managed the aforementioned said motor vehicle.

27. At all times herein mentioned, Defendant **KEVINDALE A. NURSE** maintained the aforementioned motor vehicle.

28. At all times herein mentioned, Defendant **KEVINDALE A. NURSE** controlled the aforementioned said motor vehicle.

29. At all times herein mentioned, Plaintiff **MIRIAM ORJI** operated a 2009 motor vehicle bearing New York State registration number GPL2267.

30. At all times herein mentioned, Flatbush Avenue and Linden Boulevard, Brooklyn, New York, were public roadways and/or thoroughfares.

31. That on September 18, 2014, Defendant **LEON BATSON** was operating the aforesaid motor vehicle owned by Defendant **THE CITY OF NEW YORK** at the above-mentioned location.

32. That on September 18, 2014, Defendant **KEVINDALE A. NURSE** was operating his motor vehicle at the above-mentioned location.

33. That on September 18, 2014, Plaintiff **MIRIAM ORJI** was operating her motor vehicle at the aforementioned location.

34. That on September 18, 2014, at the aforementioned location, the motor vehicle owned by Defendant **THE CITY OF NEW YORK** and operated by Defendant **LEON BATSON** and the motor vehicle owned and operated by Defendant **KEVINDALE A. NURSE** caused a non-party motor vehicle to come into contact with the motor vehicle operated by Plaintiff **MIRIAM ORJI**.

35. That as a result of the aforesaid contact, Plaintiff **MIRIAM ORJI** was injured.

36. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendants without any fault or negligence on the part of the Plaintiff contributing thereto.

37. That Defendants were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforesaid vehicle and the Defendants were otherwise negligent, careless and reckless in the premises.

38. That by reason of the foregoing, Plaintiff **MIRIAM ORJI** sustained severe and permanent personal injuries; and Plaintiff **MIRIAM ORJI** was otherwise damaged.

39. That Plaintiff **MIRIAM ORJI** sustained serious injuries as defined in Subdivision (d) of §5102 of the Insurance Law-Recodification.

40. That Plaintiff **MIRIAM ORJI** sustained serious injury and economic loss greater than basic economic loss as to satisfy the exceptions of §5104 of the Insurance Law.

41. That Plaintiff **MIRIAM ORJI** is not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse Plaintiff. Plaintiff is only seeking to recover those damages not recoverable through no-fault insurance under the facts and circumstances in this action.

42. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically, CPLR §§ 1602(6), (7) and (11).

43. That by reason of the foregoing, Plaintiff **MIRIAM ORJI**, has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

44. At all times herein mentioned, Defendant **LLYOD OXLEY** was, and is, a resident of the County of Kings, State of New York.

45. At all times herein mentioned, Defendant **YVETTE WILLIAMS** was, and is, a resident of the County of Kings, State of New York.

46. At all times herein mentioned, Defendant **YVETTE WILLIAMS** was the owner of a motor vehicle bearing New York State registration number GJS4210.

47. At all times herein mentioned, Defendant **YVETTE WILLIAMS** was the titled owner of a motor vehicle bearing New York State registration number GJS4210.

48. At all times herein mentioned, Defendant **YVETTE WILLIAMS** was the registered owner of a motor vehicle bearing New York State registration number GJS4210.

49. At all times herein mentioned, Defendant **LLYOD OXLEY** operated the aforementioned motor vehicle bearing New York State registration number GJS4210.

50. At all times herein mentioned, Defendant **LLYOD OXLEY** operated the motor vehicle with the permission of Defendant, **YVETTE WILLIAMS**.

51. At all times herein mentioned, Defendant **LLYOD OXLEY** operated the aforementioned motor vehicle with the knowledge of the Defendant **YVETTE WILLIAMS**.

52. At all times herein mentioned, Defendant **LLYOD OXLEY** operated the aforementioned motor vehicle with the consent of the Defendant **YVETTE WILLIAMS**.

53. At all times herein mentioned, Defendant **LLYOD OXLEY** operated the aforementioned motor vehicle within the scope of his employment with the Defendant **YVETTE WILLIAMS**.

54. At all times herein mentioned, Defendant **YVETTE WILLIAMS** managed the aforementioned said motor vehicle.

55. At all times herein mentioned, Defendant **LLYOD OXLEY** managed the aforementioned motor vehicle.

56. At all times herein mentioned, Defendant **YVETTE WILLIAMS** maintained the aforementioned motor vehicle.

57. At all times herein mentioned, Defendant **LLYOD OXLEY** maintained the aforementioned motor vehicle.

58. At all times herein mentioned, Defendant **YVETTE WILLIAMS** controlled the aforementioned said motor vehicle.

59. At all times herein mentioned, Defendant **LLYOD OXLEY** controlled the aforementioned motor vehicle.

60. That on September 18, 2014, Defendant **LLYOD OXLEY** was operating the aforesaid motor vehicle owned by Defendant **YVETTE WILLIAMS** at the above-mentioned location.

61. That on September 18, 2014, at the aforementioned location, the motor vehicle owned by Defendant **YVETTE WILLIAMS** and operated by Defendant **LLYOD OXLEY** came into contact with the motor vehicle operated by Plaintiff **MIRIAM ORJI**.

WHEREFORE, Plaintiff(s) demand(s) judgment against the Defendants herein, in the First Cause of Action in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction and in the Second Cause of Action in the amount of , together with the costs and disbursements of this action.

Dated: New York, New York
March 19, 2015

Yours, etc.



DANIEL LEVIT
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Our File No. 22821

ATTORNEY'S VERIFICATION

DANIEL LEVIT, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC, attorneys of record for Plaintiff(s), Miriam Orji. I have read the annexed **SUPPLEMENTAL COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: New York, New York
March 19, 2015



DANIEL LEVIT